

Court No. - 37

Case :- WRIT - C No. - 45126 of 2013

Petitioner :- Vishwanath Sharma

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- Manoj Srivastava, Rajesh Sharma

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Ashok Bhushan, J.

Hon'ble Vipin Sinha, J.

Heard learned counsel for the petitioner and Dr. S.K. Yadav for the respondent nos. 2 and 3.

By this petition, the petitioner has prayed for quashing the electricity bill amounting to Rs.77,595/-.

Petitioner's case in the writ petition is that a bill has been issued by the respondents after inspection of the petitioner's premises on 13/6/2013.

Learned counsel for the respondents submits that since the petitioner is aggrieved against the electricity bill, his remedy is to file a complaint under para 6.5 of the U.P. Electricity Supply Code, 2005. There being statutory remedy available to the petitioner, we are of the view that the petitioner may file appropriate complaint before the Executive Engineer concerned who may consider the same and decide in accordance with law. It shall be open for the petitioner also to make a request for re-connection of the electricity which may be considered in accordance with law.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 2.9.2013

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